

Smt. Mamta Jain v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 6 September 2014 · CrI. Misc. Writ Petition No. 15429 of 2014 · Criminal Misc. Writ Petition No. 15429 of 2014 · **FIR under s.135 not quashed; CrPC 41-A arrest safeguards directed**

HEADNOTE

Division Bench refused to quash an FIR under Section 135 of the Electricity Act as it disclosed a cognizable offence. Arrest not having been made, police were directed, if arrest is to be effected in an offence not entailing more than seven years' sentence, to comply with Section 41(1)(b) read with Section 41-A Cr.P.C. If the offence is compoundable, the petitioner may seek compounding under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Smt. Mamta Jain approached the Allahabad High Court to quash FIR dated 20 August 2014, Case Crime No. 216 of 2014, registered under Section 135 of the Electricity Act at Police Station Karhal, District Mainpuri. She had not been arrested. Her counsel argued that even if the charges were proved the sentence could not exceed seven years, so arrest should not be mechanical, and that the alleged offence was compoundable.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

FIR quash, arrest safeguards and compounding

HOLDING

An FIR under Section 135 of the Electricity Act that discloses a cognizable offence is not to be quashed. Where arrest has not been made and the offence cannot attract a sentence exceeding seven years, police must, if arrest is to be effectuated, comply with Section 41(1)(b) read with Section 41-A Cr.P.C. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE S.135 OFFENCE IS COMPOUNDABLE ON THESE FACTS

Liberty reserved to seek compounding under the Supply Code if the offence is compoundable; no finding that it is. ¶ 1